the proposed findings of fact and conclusions and the tentative order of the Director denying the petition of the Church of the Awakening.

In response to the tentative order the Church of the Awakening requested an opportunity to reopen the hearing for the purpose of recross-examining one of the Government's witnesses and for submitting two additional exhibits. This request was granted and the hearing was held on July 1, 1970. It was the finding of the hearing examiner, after reviewing and evaluating the testimony elicited and the two exhibits submitted by the petitioner, that the additional evidence does not in any way change his previous findings of fact, conclusions and recommendations. After reviewing the new evidence it is the decision of the Director to accept the finding of the hearing examiner.

Therefore, it is ordered, that it is the decision of the Director of the Bureau of Narcotics and Dangerous Drugs that the petition of the Church of the Awakening is denied.

At the supplemental hearing on July 1, 1970, the hearing examiner stated that the petitioner would have 30 days to comment upon the above findings, conclusions and decision. (Tr. pages 857–859.) Therefore, this order will not take effect until after further publication in the FEDERAL REGISTER. Such publication shall not take place until 30 days from the date of publication of this notice.

Dated: September 10, 1970.

JOHN E. INGERSOLL,
Director, Bureau of Narcotics and Dangerous Drugs.

[F.R. Doc. 70-12663; Filed, Sept. 22, 1970; 8:51 a.m.]

INTERIOR DEPARTMENT

Bureau of Land Management

[Sacramento 3615]

CALIFORNIA

Opening of Lands From Waterpower Withdrawals

SEPTEMBER 14, 1970.

By virtue of the authority contained in section 24 of the Federal Power Act of June 10, 1920 (41 Stat. 1075; 16 U.S.C. 818), as amended, and pursuant to authority redelegated to me by the Manager, Sacramento Land Office, Bureau of Land Management, approved by the California State Director, effective August 12, 1969 (34 F.R. 13376), it is ordered as follows:

1. In a determination dated February 2, 1970, the Federal Power Commission vacated the withdrawals created pursuant to the filings on December 6, 1926, October 5, 1927, November 28, 1928, and May 12, 1932, of applications for preliminary permit and license for Project No. 761 insofar as they pertain to the following described lands:

MOUNT DIABLO MERIDIAN

T. 1 N., R. 16 E.,
Sec. 29, lots 2 and 3, W½NE¼, E½NW¼, NE¼SW¼, and S½SW¼.

T. 1 S., R. 15 E.,
Sec. 1, lot 17 (formerly part of lot 5);
Sec. 3, N½SW¼;
Sec. 4, lots 16, 17, 18, 22, and 24;
Sec. 9, lot 3;
Sec. 10, N½NE¼;
Sec. 11, lots 3 and 4;
Sec. 18, lot 4;
Sec. 19, S½ of lot 10 and NW¼SE¼;
Sec. 20, lot 12, unpatented portion of SE¼NE¼ (formerly a part of lot 1), unpatented portion of NW¼SE¼, unpatented portion of NE¼SE¼ (formerly a part of lot 2);
Sec. 21, lots 3 and 19;
Sec. 27, NW¼SW¼.

T. 1 S., R. 16 E.
Sec. 4, SW¼NE¼ and E½SW¼ (unsurveyed);
Sec. 6, lot 5;
Sec. 9, lots 1 and 2;
Sec. 24, SW¼SE¼.

T. 1 S., R. 17 E.,
Sec. 26, S½SW¼ and SW¼SE¼;
Sec. 27, S½S½;
Sec. 28, N½SE¼SE¼;
Sec. 30, lot 2, SE¼NW¼, NW½SE¼, and S½SE¼;
Sec. 31, NE¼;
Sec. 32, lots 1 and 2, and SE¼NE¼;
Sec. 33, NW¼NW¼NE¼;
Sec. 35, N½NE¼, SE¼NE¼, and NE¼NW¼;
Sec. 36, N½NW¼ and SW¼NW¼.

T. 1 S., R. 18 E.,
Sec. 14, SW¼SE¼;
Sec. 22, SE¼SW¼, NE¼SE¼, NE¼NW¼SE¼, E½NW¼NW¼SE¼, S½NW¼SE¼, and S½SE¼;
Sec. 23, W½NE¼, NE¼NW¼, S½NW¼, N½SW¼, SW¼SW¼, and NW¼SE¼;
Sec. 27, N½NE¼, SW¼NE¼, NE¼NW¼, S½NW¼, N½SW¼, and SW¼SW¼;
Sec. 28, NE¼SE¼ and S½SE¼;
Sec. 29, NW¼SW¼;
Sec. 30, NE¼SW¼ and N½SE¼;
Sec. 33, W½ of lot 2 and N½NE¼;
Sec. 34, N½N½.

The areas described aggregate approximately 4,188 acres in Tuolumne County. Of these lands approximately 327.62 acres are nonpublic lands, approximately 811.68 acres are public lands, and approximately 3,048 acres are in the Stanislaus National Forest. Some of the lands have power value variously withdrawn in powersite reserves, powersite classifications, and other power projects. Such withdrawals will in no way be affected by the vacation and restoration of the lands withdrawn for Power Project No. 761.

2. Public Land Order No. 1633 of May 8, 1958, revoked in part, Executive Order No. 4203 of April 14, 1925, which withdrew land in California and Nevada in aid of classification for national forest status under the Act of February 20, 1925 (43 Stat. 952). The SW¼NE¼ and SE¼SW¼ sec. 4, T. 1 S., R. 16 E. described in paragraph 1 were not included in the restoration made by Public Land Order No. 1633 and are hereby restored to the operation of the public land laws, including location under the U.S. mining laws (30 U.S.C., Ch. 2) for nonmetalliferous materials, subject to any valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law, rules, and regulations as of 10 a.m. on October 19, 1970. The lands have been open to applications and offers under the mineral leasing laws and to location for metalliferous minerals. It will be open to location for nonmetalliferous materials under the U.S. mining laws at 10 a.m. on October 19, 1970.

3. Subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law, the public lands described in paragraph 1 hereof will, at 10 a.m. October 19, 1970, be opened to application, petition, location, and selection under the public land laws generally.

4. At 10 a.m. on October 19, 1970, the national forest lands described in paragraph 1 hereof shall be opened to such forms of disposition as may by law be made of national forest lands, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law.

All valid applications received at or prior to 10 a.m. on October 19, 1970, will be considered as simultaneously filed at that time. Those received thereafter shall be considered in order of filing.

The State of California has waived the preference right afforded it under section 24 of the Federal Power Act, supra.

All lands not otherwise withdrawn or reserved have been open to applications and offers under the mineral leasing laws, and to location under the U.S. mining laws subject to provisions of the Act of August 11, 1955 (69 Stat. 681; 30 U.S.C. 621).

Inquiries concerning the land should be addressed to the Manager, Land Office, Bureau of Land Management, Sacramento, Calif.

ELIZABETH H. MIDTBY,
Chief, Lands Adjudication Section.

[F.R. Doc. 70-12631; Filed, Sept. 22, 1970; 8:49 a.m.]

NEW MEXICO

Modification of Grazing District No. 1

SEPTEMBER 11, 1970.

By virtue of the authority contained in the Act of June 28, 1934 (48 Stat. 1269; 43 U.S.C. 315, et seq.), as amended, and pursuant to authority delegated in 235 D.M. 1.1 (30 F.R. 4643), the boundaries of New Mexico Grazing District No. 1 are hereby modified as follows:

1. The following-described lands are hereby eliminated from New Mexico Grazing District No. 1:

NEW MEXICO PRINCIPAL MERIDIAN

T. 18 N., R. 3 W.,
Secs. 4 to 9, inclusive;
Secs. 16 to 21, inclusive;
Secs. 28, 29, and 30.
T. 19 N., R. 3 W.,
Sec. 6, SW¼;
Sec. 7, S½NE¼, W½, and SE¼;
Secs. 18 to 21, inclusive;
Secs. 28 to 33, inclusive.
T. 17 N., R. 4 W.,
Secs. 2 to 10, inclusive;
Sec. 11, N½, SW¼, and NW¼SE¼;
Secs. 17 to 20, inclusive;
Sec. 29, N½;
Sec. 30.
Tps. 18 and 19 N., R. 4 W.